

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE RAYMOND P. MOORE**

Courtroom Deputy: Cathy Pearson Date: March 31, 2023
Court Reporter: Tammy Hoffschildt

CASE NO. 18-cv-00997-RM-KLM

Parties

DUKE UNIVERSITY and
ALLERGAN SALES, LLC,

Plaintiffs,

v.

SANDOZ INC.,

Defendant.

Counsel

Lisa Pensabene
Kathryn Reilly
Jacob Rey
Hassen Sayeed
Timothy Durst

Thomas Filarski
Richard Kornfeld
Vishal Gupta
Robert Kappers
Katherine Tellez

COURTROOM MINUTES

JURY TRIAL – Day 5

Court in session: 8:27 a.m. Jury is not present.

Same parties present as previous days.

Preliminary remarks made by the Court.

Discussion held regarding jury instructions and verdict form.

Court in recess: 8:31 a.m.

Court in session: 8:34 a.m. Jury is present.

Preliminary remarks made by the Court.

8:36 a.m. Closing argument given by Mr. Durst.

9:30 a.m. Closing argument given by Mr. Filarski.

10:28 a.m. Jury is excused.

Court in recess: 10:30 a.m.

Court in session: 10:34 a.m. Jury is not present.

Discussion held regarding admitted exhibits that pertain to willfulness.

Court in recess: 10:35 a.m.

Court in session: 10:39 a.m. Jury is not present.

10:40 a.m. Jury is present.

The Court reads instructions to the jury.

11:16 a.m. Court Security Officer is sworn.

11:18 a.m. Jury is excused to being deliberations.

ORDERED: Lunch will be provided to the jury during their deliberations.

Court in recess: 11:20 a.m.

Court in session: 2:44 p.m. Jury is not present.

The Court advises the parties that the jury submitted a question. The Court reads the question and the proposed answer to the parties.

Court in recess: 2:47 p.m.

Court in session: 2:53 p.m. Jury is present.

Upon questioning by the Court, the foreperson states that they jury has reached a verdict.

The verdict is tendered to the Court. The Court thanks the jury for their service and read the verdict in to the record.

The Court polls the jury.

3:00 p.m. Jury is discharged with the thanks of the Court and the parties.

ORDERED: Counsel shall file post-trial motions in accordance with the Federal Rules of Civil Procedure.

ORDERED: Within ten (10) days of this date, counsel for Plaintiffs shall submit a proposed Final Judgment, showing how the damages amount should be divided. Any objections from Defendant regarding the division of the damages amount shall be filed seven (7) days thereafter.

ORDERED: Within 30 days of this date, both sides shall file a status report regarding the counterclaim that was bifurcated by Judge Krieger.

Court in recess: 3:02 p.m.

Total in court time: 2:54

Hearing concluded.